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‘A Betrayal’: California to Share Data on Immigrant Drivers Nationally

Advocates say 1 million unauthorized immigrants with California driver's licenses are at risk under a state plan to share license information to a national database.

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By Khari Johnson and Wendy Fry, CalMatters









The DMV has asked for \$55 million to share its driver license data to a national organization. Advocates say the move could endanger unauthorized immigrants. Department of Motor Vehicles parking lot in central Fresno on Dec. 13, 2022. (Larry Valenzuela)

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California is preparing to share with an outside organization detailed information about driver's license holders, including immigrants who do not have legal authorization to live in the U.S. That breaks a promise the state made a decade ago when it began issuing licenses to unauthorized immigrants, advocates say, and it means more than 1 million people may face higher risk of deportation. But if state officials don't turn over the data, the Department of Homeland Security may refuse to accept California licenses and IDs at airports, the advocates believe, following a briefing with

Representatives from four advocacy groups who participated in the briefing told CalMatters the shared information will show whether a person has a Social Security number, meaning it could be used to track their movements. The state plans to provide the information to the American Association of Motor Vehicle Administrators, a nonprofit organization whose governing board is made up of DMV officials from across the country.







Advocates say 1 million unauthorized immigrants with California driver's licenses are at risk under a state plan to share license information to a national database. (Robyn Beck/AFP/Getty Images)

In the future, an ID database like the one the association maintains could be used to support [mobile licenses people can use on their iPhones or online age verification](#) for access to mature content. But advocates fear that federal immigration officials will try to gain bulk access to the data and use the fact that a person doesn't have a Social Security number as a signal that they're deportable. The state received assurances from the association that safeguards will be added to prevent bulk searches for unauthorized immigrant license holders in the database and to prevent access by unauthorized personnel. "Once this data is uploaded to AAMVA, it's out of California's control, no matter what California wants, no matter what protests we may make," said Ed Hasbrouck with San Francisco civil liberties group. To carry out the plan to share data with the association, the California Legislature will need to approve \$55 million to cover the DMV's costs. It may also need to amend existing law, which [states](#) that a person must have a Social Security number to get a driver's license. A spokesperson for the governor's office declined to confirm details of the plan or respond to specific concerns from advocates.

"California continues to lead in supporting immigrant families and protecting personal data from federal overreach," the spokesperson, Diana Crofts-Pelayo, wrote in an email. "The state has a long history of protecting the rights of immigrants." Ian Grossman, the chief executive of the American Association of Motor Vehicle Administrators, told CalMatters that participation in the verification system is voluntary and that only authorized personnel can access the data.

Social security number '99999'

For more than a decade, California and 18 other states invited undocumented people to obtain driver's licenses in order to support public safety and the economy. Economists say that such laws have helped the state's economy. [More than 1 million people have obtained driver's licenses in California](#) under [Assembly Bill 60](#), a law passed in 2013. The law prohibits the state from using information obtained in the licenses for immigration enforcement.

But the multistate verification system can reveal whether a person is an undocumented immigrant. According to an association manual obtained by CalMatters, the database will include the license information of all California drivers. Advocates fear that federal immigration officials could gain access to information in the database, including on undocumented Californians, by asking local officials to make requests on their behalf. That sort of end run would not be without precedent.

CalMatters reported on [instances last year and this year](#) where local law enforcement agencies broke state law and shared information gathered by automated license plate readers with ICE or the DMV. The DMV and the governor's office say the association will notify California of requests from any entity other than a participating state, including attempts to subpoena the database for information. The association will inform California "if legally permitted" if it receives a subpoena "to release, disclose, discuss, or obtain access to S2S information."

Hasbrouck believes the DMV and governor's office "must have known" the reassurances they got from the association were "hollow, given the possibility of gag orders."

He also said that, as a private entity, the association has less protection from court orders or subpoenas than a government agency. Its data sharing is also more easily hidden, since the association is not subject to public records laws.

Advocates see 'a direct betrayal'

Advocates who spoke with CalMatters said sharing the driver's license information with the association sells out immigrant license holders. The law that created the program prohibits the state from sharing license information with anyone other than the DMV. "It's unclear how extreme the danger people are being put into by this decision, but there's no doubt we told people with AB 60 licenses this would never happen, but it's happening, and that's a betrayal," said Linda Nguy, an associate director at the Western Center on Law and Poverty, compared the disclosure to a [move last summer](#) by Health and Human Services Secretary Robert F. Kennedy to share information about undocumented immigrants with the Department of Homeland Security.

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Pedro Rios, director of the [U.S.-Mexico Border Program](#) at the American Friends Service Committee, was not on the call, but echoed Rosenberg and Nguy, calling the data sharing plan "a betrayal of trust." Becca Cramer, who works with privacy and civil liberties groups, questioned why the governor's office and DMV are in a rush to comply with the Real ID Act two decades after it passed at a time when the state was struggling with the economic fallout from the pandemic. "It just seems like we're missing the bigger picture of this moment in time," she said.

The plan to share license information with the database depends on the state budget process because the DMV is requesting \$55 million to move the data over to the association's systems.

At a state [Senate budget hearing last month](#) to approve the funding, lawmakers questioned why the state should follow a timeline set by a private organization and share part of Californians' sensitive information. DMV director Steve Gordon told them that California unsuccessfully tried to convince the motor vehicle association to consider a unique identifier other than a social security number, and "at the end of the day, we're not going to let anyone else have that information." DMV spokesperson Jaime Garza said that Californians can submit a request to surrender or cancel a driver's license, but that driving without a license is illegal.

“Protecting immigrant communities from the Trump administration’s relentless attacks — and ensuring Californians are empowered and defended — continues to be a top priority for the Spe
Rosenberg with Oakland Privacy suggested that the state might be better off opting out of the Real ID system than sharing information about its license holders, noting that [more than 60 per](#)
“I just wonder what would happen if the state asked Californians to get a passport in order to fly for a couple of years, in order to protect 1 million Californians with AB 60 licenses. Maybe we s
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